

CHAPTER VIII

OF OFFENCES AGAINST THE PUBLIC TRANQUILLITY

Criminal Law I | IPC Sections 141-160 | BNS Sections 189-197

IPC Chapter VIII, Of Offences Against the Public Tranquillity, covers Sections 141–160, including Sections 153A, 153AA and 153B. BNS Chapter XI consolidates the corresponding subjects in Sections 189–197. This chapter explains prohibited common objects, intentional membership, common-object liability, rioting and dispersal; provocation, landholder duties, group enmity, public-servant protection and affray. It identifies changes in grouping, penalties and electronic-communication provisions, while distinguishing protected peaceful assembly from criminal conduct.

Study Notes

The chapter text is presented below with a linked contents list. The IPC references are historical; check the applicable law for the date of conduct.

Contents

1. Meaning and Purpose of Public Tranquillity
2. Unlawful Assembly under IPC Section 141
3. Common Object
4. Membership under IPC Sections 142–145
5. BNS Section 189: Consolidated Unlawful-Assembly Rules
6. Rioting under IPC Sections 146–148
7. Rioting under BNS Section 191
8. Constructive Liability under IPC Section 149
9. BNS Section 190
10. Common Object, Common Intention and Conspiracy
11. Liability for Hiring and Related Conduct
12. Assembly Ordered to Disperse
13. Assaulting a Public Servant Suppressing a Riot
14. Provocation, Landholder Duties and Affray
15. Public Harmony Provisions
16. Peaceful Protest and Constitutional Protection
17. Evidence and Withdrawal
18. Method for Solving Problems
19. Provocation to Riot: IPC Section 153 and BNS Section 192
20. Promoting Enmity: IPC Section 153A and BNS Section 196
21. Armed Processions: IPC Section 153AA
22. National Integration: IPC Section 153B and BNS Section 197
23. Landholders and Agents: IPC Sections 154–156 and BNS Section 193
24. Harboursing and Hiring for an Unlawful Assembly: IPC Sections 157–158 and BNS Section 189(7)–(9)
25. Affray: IPC Sections 159–160 and BNS Section 194
26. Consolidated Revision Map

1. Meaning and Purpose of Public Tranquillity

Public tranquillity means the condition of collective peace in which people can exercise rights and public authorities can perform lawful functions without group violence, intimidation or disorder. These offences address the special danger created when several persons combine around a prohibited common object.

The mere presence of a crowd is not criminal. The law requires the prescribed number of persons, a statutorily prohibited common object, knowledge of facts making the assembly unlawful, or other ingredients of the specific offence. Peaceful assembly remains protected by Article 19(1)(b), subject to reasonable restrictions under Article 19(3).

2. Unlawful Assembly under IPC Section 141

An assembly of five or more persons is an unlawful assembly if its common object is:

- (a) to overawe by criminal force or show of criminal force the Central or a State Government, Parliament, a State Legislature, or a public servant exercising lawful power;
- (b) to resist the execution of any law or legal process;
- (c) to commit mischief, criminal trespass or another offence;
- (d) by criminal force or show of criminal force, to take or obtain possession of property, deprive a person of a right of way, water or another incorporeal right, or enforce a right or supposed right; or
- (e) by criminal force or show of criminal force, to compel a person to do what that person is not legally bound to do, or omit what that person is legally entitled to do.

An assembly lawful at its beginning may subsequently become unlawful if its common object changes. Conversely, individual misconduct does not automatically establish that every person present shared a prohibited common object.

3. Common Object

Common object is the shared objective of the assembly. It may be formed before the members gather or develop suddenly at the scene. It need not be the product of a formal agreement.

The object is inferred from proved circumstances such as the nature of the assembly, words used, weapons carried, conduct, target, route, prior communications, division of roles and behaviour before, during and after the incident. Courts must avoid assuming a common object merely from proximity, family relationship or presence in a large crowd.

4. Membership under IPC Sections 142-145

Under IPC Section 142, a person becomes a member when, being aware of facts rendering the assembly unlawful, the person intentionally joins it or continues in it. Sections 143-145 prescribe punishment for membership, armed membership, and joining or remaining after the assembly has lawfully been commanded to disperse.

Knowledge and intentional participation are essential. A passer-by, victim, observer, person trapped at the location or one who has clearly withdrawn is not automatically a member. Presence may be strong evidence when combined with conduct, but it is not an irrebuttable rule.

5. BNS Section 189: Consolidated Unlawful-Assembly Rules

BNS Section 189 consolidates the definition of unlawful assembly, membership and several related IPC offences. It retains the requirement of five or more persons and substantially preserves the five prohibited common objects.

Its sub-sections address intentional membership; joining or continuing after a lawful command to disperse; armed membership; knowingly remaining in an assembly likely to disturb public peace after a command to disperse; hiring or promoting persons to join; harbouring hired persons; and being hired or going armed to assist the prohibited acts.

The consolidation means that an answer should identify the relevant sub-section, not cite Section 189 generally without stating the particular conduct.

6. Rioting under IPC Sections 146-148

Rioting occurs when force or violence is used by an unlawful assembly, or by any member of it, in prosecution of the common object. Every member of that unlawful assembly is then guilty of rioting under the statutory rule.

IPC Section 147 provides punishment for rioting. Section 148 provides enhanced punishment where the offender is armed with a deadly weapon or anything which, used as a weapon of offence, is likely to cause death.

An unlawful assembly can exist without rioting; rioting requires force or violence. A violent incident involving fewer than five persons may constitute other offences but cannot satisfy the five-person foundation of unlawful assembly on those facts alone.

7. Rioting under BNS Section 191

BNS Section 191 consolidates the definition and punishment of rioting. Sub-section (1) defines the offence; sub-section (2) provides imprisonment up to two years, fine, or both; and sub-section (3) provides imprisonment up to five years, fine, or both where the rioter is armed with a deadly weapon or an object likely to cause death when used as a weapon.

The BNS therefore places definition, ordinary punishment and armed-rioting punishment within one section while substantially retaining the underlying structure.

8. Constructive Liability under IPC Section 149

IPC Section 149 makes every member of an unlawful assembly guilty of an offence committed by any member where the offence is:

- (a) committed in prosecution of the common object; or
- (b) one which members knew to be likely to be committed in prosecution of that object.

This is a rule of constructive liability, but it is not unlimited group punishment. The prosecution must prove an unlawful assembly, the accused's membership at the relevant time, the common object, the offence committed by a member, and the required connection or likelihood and knowledge.

9. BNS Section 190

BNS Section 190 substantially carries forward the common-object rule. If an offence is committed by a member in prosecution of the common object, or is one the members knew to be likely in prosecution of it, every person who was a member at the time is guilty of that offence.

The provision does not require proof that each member performed the final physical act. It does require a reliable finding of membership and statutory connection. Liability must be assessed separately for each accused, particularly where a gathering is large or changes over time.

10. Common Object, Common Intention and Conspiracy

Common object requires an unlawful assembly of at least five persons and does not necessarily require a prior agreement. Common intention is a joint-liability principle connected with participation in a criminal act done in furtherance of a shared intention and does not require five persons.

Criminal conspiracy centres on an agreement between at least two persons to pursue the unlawful object or means. The same evidence may raise more than one doctrine, but their ingredients cannot be treated as interchangeable.

11. Liability for Hiring and Related Conduct

IPC Section 150 makes a person who hires, engages, employs, promotes or connives at hiring persons to join an unlawful assembly punishable as a member and, within the statutory rule, for offences committed in pursuance of that hiring.

IPC Sections 157–158 address harbouring hired persons and being hired or going armed. BNS Section 189 brings these forms of liability into its consolidated sub-sections. Proof must connect the accused's conduct to the unlawful assembly; ordinary employment or association is insufficient.

12. Assembly Ordered to Disperse

IPC Section 145 concerns joining or continuing in an unlawful assembly knowing that it has been commanded in the manner prescribed by law to disperse. IPC Section 151 addresses knowingly joining or continuing in an assembly of five or more persons likely to disturb public peace after it has lawfully been commanded to disperse.

BNS Section 189 separately reflects these situations. The prosecution must prove a lawful command, the accused's knowledge of it, continued or subsequent participation, and the character of the assembly. The legality and communication of the order are important factual questions.

13. Assaulting a Public Servant Suppressing a Riot

IPC Section 152 punishes assaulting, threatening to assault, obstructing, or attempting to obstruct a public servant who is endeavouring to disperse an unlawful assembly or suppress a riot or affray, and using or threatening criminal force against that public servant.

BNS Section 195(1) covers actual assault, obstruction or use of criminal force against a public servant performing this duty; it prescribes up to three years' imprisonment or a fine of at least ₹25,000, or both. Section 195(2) separately covers threatened assault or attempted obstruction or criminal force; it prescribes up to one year, fine, or both. The public servant must be acting in discharge of the relevant official duty.

14. Provocation, Landholder Duties and Affray

BNS Section 192 punishes malignant or wanton illegal provocation intended or known to be likely to cause rioting, with punishment depending on whether a riot occurs. Section 193 addresses specified failures of owners, occupiers, agents or managers to report, prevent, suppress or disperse an unlawful assembly or riot in the statutory circumstances.

BNS Section 194 defines affray as two or more persons fighting in a public place and thereby disturbing public peace. Unlike unlawful assembly, affray needs only two persons and does not require one of the five common objects. Unlike rioting, it need not arise from an unlawful assembly.

15. Public Harmony Provisions

BNS Sections 196 and 197 address promoting enmity between groups and assertions prejudicial to national integration. Their IPC antecedents lie principally in Sections 153A and 153B. The BNS expressly covers electronic communication, while Section 197(1)(d) also addresses specified false or misleading information jeopardising India's sovereignty, unity, integrity or security. These sections must be read according to their exact statutory ingredients.

These offences may involve speech and therefore require careful application of the statutory mental element, context, audience and constitutional protections. Mere unpopular opinion should not be equated with the prohibited promotion of enmity or disharmony.

16. Peaceful Protest and Constitutional Protection

Article 19(1)(a) protects speech and Article 19(1)(b) protects peaceful assembly without arms. These rights are subject to constitutionally permitted reasonable restrictions. A demonstration does not become an unlawful assembly merely because it criticises government or causes inconvenience.

The legal question is whether five or more persons share one of the prohibited common objects and whether the accused knowingly and intentionally joins or continues. Violence, weaponry, coercive purpose, refusal after a lawful dispersal command and conduct of individual participants must be analysed in context.

17. Evidence and Withdrawal

Membership and common object may be proved through direct or circumstantial evidence, including reliable video, location evidence, communications, weapons, injuries, slogans, conduct and identified roles. Digital evidence must be authenticated, and group identification must not replace individual proof.

A member may withdraw before the offence, but withdrawal must be real and communicated or manifested by clear conduct. Mere physical movement within the scene may not prove withdrawal. A person who joins later is assessed from the time of joining, not automatically from the assembly's beginning.

18. Method for Solving Problems

Use the following sequence:

- (a) identify whether at least five persons formed the assembly;
- (b) state the precise prohibited common object;
- (c) determine when the object arose or changed;
- (d) prove the accused's awareness and intentional membership;
- (e) identify any lawful command to disperse and knowledge of it;
- (f) determine whether force or violence made the offence rioting;
- (g) identify weapons and the armed-rioting rule;
- (h) for constructive liability, connect the offence to the common object or prove known likelihood;
- (i) distinguish common object from common intention and conspiracy;
- (j) examine withdrawal, late entry and individual roles;
- (k) identify the precise IPC section or BNS section and sub-section; and
- (l) apply constitutional protection to peaceful speech and assembly before reaching a reasoned conclusion.

19. Provocation to Riot: IPC Section 153 and BNS Section 192

Both provisions address malignant or wanton illegal provocation intended or known to be likely to cause rioting. Punishment depends on whether rioting follows the provocation: up to one year if it does, or up to six months if it does not, or fine or both. Identify the illegal provoking act, the required intent or knowledge, and the causal consequence.

20. Promoting Enmity: IPC Section 153A and BNS Section 196

These provisions address specified promotion of disharmony or enmity between protected groups, acts prejudicial to public harmony, and organised exercises or drills intended or known to involve violence against such groups. BNS Section 196(1)(a) expressly includes electronic communication. Offences in a place of worship or an assembly engaged in religious worship have an enhanced punishment provision in subsection (2). Examine the actual message or activity, group distinction, context and statutory elements; criticism alone is not enough.

21. Armed Processions: IPC Section 153AA

The attached IPC text includes Section 153AA on knowingly carrying arms in a procession or joining a mass drill or training with arms contrary to a public notice or order under the former CrPC Section 144A. BNS Chapter XI, Sections 189–197, does not contain a separately numbered provision matching that offence. Do not manufacture a one-to-one BNS counterpart: identify the jurisdiction and date of the act, the applicable public-order law and any valid order before discussing liability.

22. National Integration: IPC Section 153B and BNS Section 197

These provisions concern specified statements or imputations about the allegiance, citizenship rights or communal obligations of groups. BNS Section 197 adds an express electronic-communication mode and clause (1)(d), addressing false or misleading information that jeopardises India's sovereignty, unity, integrity or security. Both statutes provide a higher punishment for the specified offence committed in a place of worship or an assembly performing religious worship. Identify the precise clause and prove its elements rather than assuming all contentious speech is prohibited.

23. Landholders and Agents: IPC Sections 154-156 and BNS Section 193

These provisions cover specified duties of an owner or occupier of land, an interested person and that person's agent or manager when an unlawful assembly or riot occurs or is likely. BNS Section 193 consolidates the landholder and interested-person rules in subsections (1) and (2), and the agent or manager rule in subsection (3). Liability depends on statutory notice, knowledge or reason to believe, capacity to act and failure to use the lawful measures required; ownership alone is not sufficient.

24. Harboursing and Hiring for an Unlawful Assembly: IPC Sections 157-158 and BNS Section 189(7)-(9)

IPC Section 157 addresses knowingly harbouring or gathering persons hired to join an unlawful assembly. IPC Section 158 addresses being hired or offering to be hired to perform one of the unlawful-assembly objects, with a more serious armed form. The BNS brings these rules into Section 189(7), (8) and (9). Distinguish the organiser, the harbourer, the hired participant and a hired participant who goes armed.

25. Affray: IPC Sections 159-160 and BNS Section 194

Two or more persons commit affray when fighting in a public place disturbs public peace. Both IPC Section 159 and BNS Section 194(1) define the offence. IPC Section 160 and BNS Section 194(2) state punishment: imprisonment up to one month, fine, or both. The BNS maximum fine is ₹1,000, compared with ₹100 under the IPC text. Affray does not require five people or an unlawful common object.

26. Consolidated Revision Map

IPC 141-145 → BNS 189(1)-(5); IPC 146-148 → BNS 191(1)-(3); IPC 149 → BNS 190; IPC 150 → BNS 189(6); IPC 151 → BNS 189(5); IPC 152 → BNS 195; IPC 153 → BNS 192; IPC 153A → BNS 196; IPC 153AA has no separately numbered counterpart in BNS Chapter XI; IPC 153B → BNS 197; IPC 154-156 → BNS 193; IPC 157-158 → BNS 189(7)-(9); IPC 159-160 → BNS 194. Read the exact subsection and the law in force at the date of conduct.